HEADNOTE

"1. The claims introduced for the first time during the interim proceedings in the infringement action, based on the scope of the patent in dispute within the framework of the auxiliary requests and the related submission of facts, are not admissible.
2. Where dependent claims or amended claim formulations form the subject-matter of auxiliary requests, it must be possible to amend the infringement action accordingly. However, the Claimant must make use of this option at the same time as introducing amendments to the patent at issue.
3. Unless the Claimant submits a substantiated argument that, in the case of multiple cross-references, it wishes to defend all cross-referenced claims in combination, the examination of the validity of the patent at dispute is based solely on the main claim. Unless it is substantiated which specific combinations of claims are considered to be valid, the validity assessment in the case of multiple cross-references shall cover all combinations covered by the wording of the dependent claim. If a single one of the combinations covered proves to be invalid, the dependent claim as a whole is invalid."

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action and Counterclaim for revocation

PATENT
EP 3 281 569

MODULAR FOAM UNIT

KEYWORDS
Application filing · Auxiliary requests · Dependent claims · Combinations · Legal status · Granted patent

SUMMARY
The Local Division in Düsseldorf ruled on an infringement action and counterclaim for revocation. The patent at issue relates to a modular foam unit. According to the headnotes of the decision, claims introduced for the first time during interim proceedings are not admissible. This applies where such claims are based on auxiliary requests submitted after the action commenced. However, when dependent claims or amended formulations form the subject of auxiliary requests, the claimant may amend the infringement action accordingly. This option must be exercised at the same time as introducing patent amendments. Furthermore, when a patent contains multiple cross-referenced claims, the validity assessment focuses on the main claim. The claimant may defend all cross-referenced claims together only if substantiated. In particular, where specific combinations are not substantiated, the examination covers all combinations that the dependent claim's wording permits. As a result, if any single combination among those covered proves invalid, the entire dependent claim fails.